

**In the Supreme Court of Bangladesh
High Court Division
(Special Original Jurisdiction)**

Present:

**Mr. Justice Mustafa Zaman Islam
And
Mr. Justice Md. Atabullah**

Writ Petition no. 3927 of 2001.

In the matter of:

An application under Article 102 read with Article 44 of the Constitution of People's Republic of Bangladesh.

In the matter of:

Harun Mridha and others

..... petitioners.

-Versus-

Bangladesh, represented by the
Secretary, Ministry of Law and
Parliamentary Affairs, Bangladesh
Secretariat, Ramna, Dhaka and others

..... Respondents.

No one appears,

..... For the petitioners.

Mr. Tushar Kanti Roy, D.A.G. with

Mr. Md. Salim Azad. and

Ms. Anis ul Mawa, A.A.G.

..... For the Respondents.

Heard and Judgment

delivered on: 04.03.2024.

Mustafa Zaman Islam, J:

By this Rule, the petitioners by filing an application
under Article 102 read with Article 44 of the Constitution
of People's Republic of Bangladesh, the petitioners

obtained this Rule Nisi calling upon the respondents to show cause as to why the Public Safety Act, 2000 should not be held to be unconstitutional and void as being violative of the fundamental rights of the petitioners guaranteed by Articles 27, 31, 32 and 35 of the Constitution and/or such other or further order or orders passed as to this court may seem fit and proper.

Since a challenge against the Jana Nirapatta Ain, 2000 has ended in a dissenting judgment except on section 16 and 18(1)(Kha) of the Act, let petitioners be released on ad-interim bail to the satisfaction of the Deputy Commissioner, Jhalakathi in Nalsity Police Station Case No. 04 dated 06.07.2001 corresponding to G.R. No. 124 of 2001 under sections 10/12 of the Jana Nirapatta (Bishesh Bidhan) Ain, 2000 read with sections 148/323/324/325/326/307 of the Penal Code, 1860 now pending in the Court of Magistrate, 1st Class, Jhalakathi.

The police report has not been yet submitted.

Feeling aggrieved the petitioners preferred the instant Writ Petition and obtained the present Rule.

No one appears on behalf of the petitioners to support the Rule.

The learned Deputy Attorney General appearing on behalf of the respondents.

In order to appreciate his submissions we have gone through the record and given our anxious consideration to his submissions.

On going to the materials on record it transpires that the case was lodged under sections 10/12 of the Jana Nirapatta (Bishesh Bidhan) Ain, 2000 read with sections 148/323/324/325/326/307 of the Penal Code, 1860.

It is pertinent to point out that the জননিরাপত্তা (বিশেষ বিধান) আইন, 2000 was repealed vide Act no. VI of 2002 dated 2nd April, 2002. Therefore, the instant proceeding has no legal force.

In view of foregoing narrative the Rule is disposed of. The proceeding of Nalsity Police Station Case No. 04 dated 06.07.2001 corresponding to G.R. No. 124 of 2001

under sections 10/12 of the Jana Nirapatta (Bishesh Bidhan) Ain, 2000 read with sections 148/323/324/325/326/307 of the Penal Code, 1860 now pending in the Court of Magistrate, 1st Class, Jhalakathi is hereby quashed.

The office is directed to communicate the judgment and order at once.

Mustafa Zaman Islam

Md. Atabullah, J:

I agree.

Md. Atabullah